

25NWCV03574 25NWCV03574

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Case Number: 25NWCV03574 Hearing Date: September 16, 2026 Dept: C

MIRANDA, A MINOR BY AND THROUGH HIS GUARDIAN AD LITEM,
MARTINEZ, et al. vs KAISER FOUNDATION HOSPITALS, et al.

CASE NO.: 25NWCV03574

HEARING: 9/16/26 @ 9:30 a.m.

#10

TENTATIVE ORDER

Defendants Kaiser

Foundation Hospitals, Kaiser Foundation Health Plan, Inc., and Southern California Permanente Medical Group's Unopposed Motion to Compel Arbitration is GRANTED. Proceedings are STAYED pending completion of arbitration. A post-arbitration status conference is scheduled for September 16, 2027 at 9:00 a.m. in Dept. SE-C.

Moving Party to give
notice.

Defendants Kaiser Foundation Hospitals, Kaiser Foundation Health Plan, Inc., and Southern California Permanente Medical Group (Defendants) move to compel arbitration against Plaintiffs JAYCE MIRANDA, a minor by and through his Guardian ad Litem, ESTEFANIA MARTINEZ (collectively "Plaintiffs") and requests to stay the action.

Background

Plaintiffs allege that in the labor and delivery process leading up to JAYCE MIRANDA's (Miranda) birth on October 3, 2024, Defendants failed to properly evaluate and treat ESTEFANIA MARTINEZ (Martinez) during the labor and delivery of her child, JAYCE MIRANDA. This included but was not limited to failure to recognize fetal arrhythmia in the fetal monitoring strips. As a result of this negligence, MIRANDA was born with hypoxic ischemic encephalopathy and other lifelong cognitive and neurologic problems. (Compl., ¶ 13.) Based thereon Plaintiffs assert the following causes of action:

1.

Medical

Malpractice; and

2.

Negligent

Infliction of Emotional Distress.

Legal Standard

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; see also *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-57.)

"If a court of

competent jurisdiction. . .has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

Discussion

I.

Existence of Valid Arbitration Agreement

Before compelling arbitration pursuant to the Federal Arbitration Act (FAA), "the court determines whether a valid arbitration agreement exists." (Henry Schein, Inc. v. Archer & White Sales, Inc. (2019) 586 U.S. 23 63, 69.) State law governs whether an agreement to arbitrate was formed. (First Options of Chicago, Inc. v. Kaplan (1995) 514 U.S. 938, 944.) To form a valid agreement in California, there must be: 1) parties capable of contracting; 2) mutual consent (offer and acceptance); 3) a lawful purpose; and 4) consideration. (Civ. Code, § 1550.) A party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalia v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.)

Defendants argue that Plaintiffs' claims are subject to binding arbitration pursuant to the provisions of the 2024 Group Agreement and Evidence of Coverage between TriNet HR III, Inc. ("TriNet"), Martinez's employer, and Kaiser Foundation Health Plan, Inc. ("Health Plan" and the "Agreement/EOC") (Petition, Exh. A) under which Plaintiffs' family was enrolled and Plaintiffs were entitled to coverage from Health Plan at the time the medical care at issue was provided. The Agreement/EOC provides for binding arbitration of "any claim" arising out of the Agreement "irrespective of the legal theories upon which the claim is asserted."

The 2024 Agreement/EOC was in effect between Kaiser and Plaintiffs at the time of the services at issue. Pages 77-80 of the Agreement/EOC (Ex. A) provide for binding arbitration of Plaintiffs' claims. The Binding Arbitration provision states, in part:

Binding Arbitration

For all claims subject to this "Binding Arbitration" section, both Claimants and Respondents give up the right to a jury or court trial and accept the use of binding arbitration. . . .

Scope of arbitration

Any dispute shall be submitted to binding arbitration if all of the following requirements are met:

- The claim arises from or is related to an alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. (Health Plan), including any claim for medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of the legal theories upon which the claim is asserted

·

The claim is asserted by one or more Member Parties against one or more Kaiser Permanente Parties or by one or more Kaiser Permanente Parties against one or more Member Parties

- Governing law does not prevent the use of binding arbitration to resolve the claim

Members enrolled under this EOC thus give up their right to a court or jury trial, and instead accept the use of binding arbitration except that the following types of claims are not subject to binding arbitration:

- Claims within the jurisdiction of the Small Claims Court

- Claims subject to a Medicare appeal procedure as applicable to Kaiser Permanente Senior Advantage and Medicare Cost Members

Claims that cannot be subject to binding arbitration under governing law

As referred to in this "Binding Arbitration" section, "Member Parties" include:

- A Member
- A Member's heir, relative, or personal representative

· Any person claiming that a duty to him or her arises from a Member's relationship to one or more Kaiser Permanente Parties "Kaiser Permanente Parties" include:

· Kaiser Foundation Health Plan, Inc.

· Kaiser Foundation Hospitals

· The Permanente Medical Group, Inc.

· Southern California Permanente Medical Group

· The Permanente Federation, LLC

· The Permanente Company, LLC

· Any Southern California Permanente Medical Group or The Permanente Medical Group physician

· Any individual or organization whose contract with any of the organizations identified above requires arbitration of claims brought by one or more Member Parties

· Any employee or agent of any of the foregoing having affirmatively "Claimant" refers to a Member Party or a Kaiser Permanente Party who asserts a claim as described above. "Respondent" refers to a Member Party or a Kaiser Permanente Party against whom a claim is asserted.

(Petition to Compel Arbitration, Exh. A.)

Plaintiffs do not oppose the motion.

The Court finds that Defendants have met their burden of showing that Plaintiffs entered into a valid arbitration agreement. Moreover, Defendants demonstrate the arbitration agreement covers the controversy. First, Defendants evidence that Plaintiffs were enrolled at the time of the medical services at issue in the 2024 Agreement/EOC under which a binding arbitration was included. (Petition to Compel Arbitration, Exh. A, p. 85.) Second, Defendants demonstrate the controversy between the parties was covered by the arbitration agreement as it states that scope of the agreement includes "any claim for

medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered).” (Petition to Compel Arbitration, Exh. A.) Here, Plaintiffs claims arise from Defendants’ alleged medical negligence and Plaintiffs’ Complaint is centered on, and dependent on, the medical malpractice cause of action. (Compl., ¶¶ 13-15.) Therefore, the arbitration agreement must be enforced.

The motion to compel arbitration is GRANTED.